

SENATE BILL 2041

By Rose

AN ACT to amend Tennessee Code Annotated, Title 28
and Title 39, Chapter 17, relative to unlawful
exposure.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 39-17-318, is amended by adding
the following new subsection:

(e)

(1) Except as provided in subdivision (e)(6), an individual who is the
subject of an intimate image that is distributed in violation of subsection (a) may
bring a civil action against that person in an appropriate court as set forth in this
subsection (e).

(2) For purposes of an action under this subsection (e):

(A) An individual's consent to the creation of the intimate image
does not establish that the individual consented to distribution of the
intimate image; and

(B) Consent is deemed validly given only if:

(i) The consent is set forth in an agreement written in plain
language signed knowingly and voluntarily by the individual
depicted in the intimate image; and

(ii) The consent includes a general description of the
intimate image to be distributed.

(3) In a civil action filed under this subsection (e), an individual may
recover any of the following:

(A) An amount equal to any monetary gain made by the defendant from the distribution of the intimate image;

(B) Either of the following:

(i) The actual damages sustained by the individual as a result of the distribution of the intimate image, including damages for emotional distress; or

(ii) Liquidated damages in the amount of one hundred fifty thousand dollars (\$150,000);

(C) Punitive damages, pursuant to § 29-39-104; and

(D) The cost of the action, including reasonable attorney's fees and other reasonably incurred litigation costs.

(4) In a civil action filed under this subsection (e), a court may, in addition to any other relief available at law, order equitable relief, including a temporary restraining order, a preliminary injunction, or a permanent injunction ordering the defendant to cease display or distribution of the intimate image.

(5) In ordering relief under this subsection (e), the court may grant injunctive relief that maintains the confidentiality of a plaintiff by using a pseudonym.

(6) An identifiable individual shall not bring an action for relief under this subsection (e) relating to:

(A) A distribution the defendant can show was made in good faith:

(i) To or by a law enforcement officer or agency in the course of reporting or investigating:

(a) Unlawful activity; or

(b) Unsolicited or unwelcome conduct; or

(ii) As part of a legal proceeding; or

(B) A distribution made in good faith and reasonably intended to assist the identifiable individual.

(7) A court may authorize an in camera proceeding under this subsection (e).

(8) It is not a defense to an action under this subsection (e) that there is a disclaimer stating that the distribution of the intimate image of the identifiable individual was unauthorized.

(9) For purposes of this subsection (e), a provider of an interactive computer service, as defined in 47 U.S.C. § 230, or an information service or telecommunications service, as defined in 47 U.S.C. § 153, is not liable on account of:

(A) Any action voluntarily taken in good faith to restrict access to or availability of an intimate image;

(B) Any action taken to enable or make available to information content providers or other persons the technical means to restrict access to an intimate image; or

(C) Any content provided by another person in violation of this section.

SECTION 2. Tennessee Code Annotated, Section 39-17-318(b), is amended by adding the following as new subdivisions:

() "Distribute" means to transfer, publish, disclose, or make accessible;

() "Intimate image" means a photograph, video recording, or social media broadcast of:

(A) The intimate part or parts of an identifiable person; or

(B) An identifiable person engaged in sexually explicit conduct;

SECTION 3. This act takes effect July 1, 2026, the public welfare requiring it, and applies to causes of action arising on or after that date.